

The Procedure For Admission And Disposal Of Application Rules, 2004

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The Procedure For Admission And Disposal Of Application Rules, 2004

UNION OF INDIA

India

The Procedure For Admission And Disposal Of Application Rules, 2004

Rule THE-PROCEDURE-FOR-ADMISSION-AND-DISPOSAL-OF-APPLICATION-RULES-2004 of 2004

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The Procedure For Admission And Disposal Of Application Rules, 2004

Published vide Notification G.S.R. 676(E), dated 19.10.2004, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 14.10.2004

Last Updated 26th September, 2019

G.S.R. 676(E), dated 14th October, 2004. - In exercise of the powers conferred by clause (d) of sub-section (2) of section 52 of the Unlawful Activities (Prevention) Act, 1967 (37 of 1967

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement. - (1) These rules may be called The Procedure for Admission and Disposal of Application Rules, 2004.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Making and admission of application. - (1) An application under sub-section (1) of section 36 shall be addressed to the Secretary to the Government of India in the Ministry of Home Affairs, North Block, New Delhi and presented personally or forwarded to him by registered post with acknowledgment due.

(2)

The application shall set forth concisely the grounds for removal of the organization [from the First Schedule or as the case may be, the name of an individual from the Fourth Schedule].

3.

Disposal of application. - (1) The application made under sub-section (1) of section 36 of the Act shall be considered and disposed of by the Central Government within a period of forty-five days from the date of receipt of application.

(2)

If the Central Government is satisfied that the application filed under sub-section (1) of section 36 is defective in any form, the Central Government shall, before rejecting such application, call upon the concerned organisation or the person, as the case may be, to remove the defect within a period of thirty days and if he or it does so, the application shall be considered.

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